

FIRST ENDORSEMENT

Andre Applewhite, Chief Prosecutor, Civilian Complaint Review Board to Deputy Commissioner Tarek A. Rahman, Department Advocate's Office, May 21, 2025. Contents noted. Recommend approval of the negotiated plea agreement in DADS No. 2022-26629 against LT Mervin Bennett, Tax Registry No. 920019. The case was conferenced on May 20, 2025, before Assistant Deputy Commissioner of Trials Anne Stone, who approved the negotiated penalty of a Command Discipline A and forfeiture of 5 vacation days for DADS No. 2022-26629, after accepting the finding(s) of substantiation of the allegations contained in the Charges and Specifications. Charges and specifications will be dismissed for plea purposes.

Andre D. Applewhite

Andre Applewhite
Chief Prosecutor
New York City Civilian Complaint Review Board

**DISPOSITION OF CHARGES**

PD 468-142 (Rev. 8-89)-2

CASE NO.
C-031897BOOK & PAGE NO.
Page 1 of 1

PERSONNEL ORDER NO.

RANK/TITLE LT	SURNAME, BENNETT	FIRST MERVIN	M.I.	COMMAND 028
SHIELD NO. 00000	TAX REGISTRY NO. 920019	SOCIAL SECURITY NO.	DATE APPOINTED 12/08/1997	
RANK/NAME OF COMPLAINANT				COMMAND
DATE OF CHARGES		DATE TRIAL COMMENCED		DATE TRIAL CONCLUDED

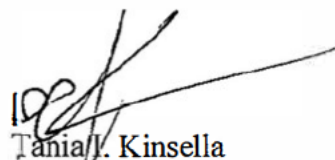
TRIAL COMMISSIONER

SPECIFICATION	DISPOSITION	RECOMMENDED PENALTY PLEA [X] TRIAL []
1. Lieutenant MERVIN BENNETT, on or about February 7, 2021, at approximately 1815, while assigned to 028 PCT and on duty, in the vicinity of the 28th Precinct stationhouse, New York County, was discourteous to § 87(2)(b) in that he stated in sum and substance, "Bring that motherfucker to the ground," without police necessity.	DISMISSED	A - COMMAND DISCIPLINE It is recommended that the Charges and Specifications be dismissed and that the matter be remanded to the Respondents command for imposition of a Schedule A Command Discipline with the forfeiture of the amount of vacation days as indicated.
2. Lieutenant MERVIN BENNETT, on or about February 7, 2021, at approximately 1815, while assigned to 028 PCT and on duty, in the vicinity of the 28th Precinct stationhouse, New York County, wrongfully used force, in that he directed officers under his supervision to bring § 87(2)(b) to the ground without police necessity.	DISMISSED	VACATION DAYS 5.00 - It is recommended that the Respondent forfeit the amount of vacation days as indicated.

FIRST DEPUTY COMMISSIONER12/10/25
DATE**POLICE COMMISSIONER'S APPROVAL**☒ Approved☐ Disapproved☐ Other Action (Describe)
POLICE COMMISSIONER12/10/25
DATE

THIRD ENDORSEMENT

First Deputy Commissioner to Police Commissioner, December 9, 2025. Contents noted. I reviewed the negotiated plea in Disciplinary Case No. C-031897 (CCRB Case No. 202100898) against Lieutenant Mervin Bennett, Tax No. 920019, with the recommendation that he receive a Schedule "A" Command Discipline and forfeit five (5) vacation days. Assistant Deputy Commissioner, Trials Anne E. Stone reviewed this matter and made a favorable recommendation pertaining to the proposed settlement; I concur. **RECOMMEND APPROVAL.**



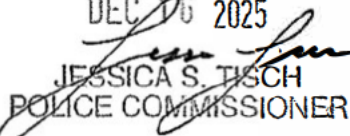
Tania J. Kinsella

FIRST DEPUTY COMMISSIONER

TIK/jpc

APPROVED

DEC 16 2025



JESSICA S. TISCH
POLICE COMMISSIONER